

tion of such documents can be compelled, under the following Order :

LVI.
Production of
documents
named by
party, when
under examin-
ation.

Any party to the record under examination, admitting that he has in his custody or power any deeds, papers writings or documents relating to the matters in question in the cause, shall be liable, upon the order of the Court, or of an examiner or commissioner before whom he shall be examined, to produce the same for the inspection of the party examining him, for which purpose a reasonable time shall be allowed : provided always, that either party may appeal from the order of such examiner or commissioner, whereupon such examiner or commissioner shall certify under his hand the question raised, and the order thereupon, and the costs of such appeal shall be in the discretion of the Court. Provided also, that no party shall be obliged to produce any deeds, papers, writings or documents which he would have been obliged to produce heretofore.

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